

Family Law – I (Hindu Law)

LL.B. – Paper II

Unit-wise Important Questions

5 Marks • 10 Marks (Case Law with Illustrations) • 15 Marks

Unit	5 Marks	10 Marks (case law)	15 Marks
Unit I	12	5	5
Unit II	12	4	4
Unit III	12	5	5
Unit IV	12	4	4
Unit V	12	5	5

How to use: Part A gives short-answer questions, Part B gives case-law questions with a model answer outline (principle, case table and an illustration), and Part C gives long-answer questions with the key points to cover. For citations in the examination, cross-check against the law report or your prescribed readings (Paras Diwan — *Modern Hindu Law and Family Law*; Mayne's *Treatise on Hindu Law & Usage*; Sharaf — *Law of Marriage and Divorce*; G.C.V. Subba Rao — *Family Law in India*; Y.F. Jaya Kumar — *Horizons of Family Law in India*).

Unit-I: Sources and Schools of Hindu Law, Joint Family, Coparcenary and Karta

Part A — 5 Marks Questions

1. Enumerate and explain the sources of Hindu law (ancient and modern).
2. Explain the scope and application of Hindu law in India today.
3. Distinguish the Mitakshara and Dayabhaga schools of Hindu law.
4. Explain briefly the sub-schools of the Mitakshara school.
5. Define a Hindu joint family. How is it constituted?
6. Define coparcenary. Who are coparceners?
7. Distinguish joint family property from separate (self-acquired) property.
8. Who is a Karta? State his position in a Hindu joint family.
9. Explain the powers of a Karta to alienate joint family property.
10. Explain the doctrine of pious obligation of a son to pay his father's debts.
11. Explain partition under Hindu law — its meaning and modes.
12. Explain the doctrine of antecedent debt.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Distinguish the Mitakshara and Dayabhaga schools of Hindu law and explain the concept of a Hindu coparcenary, with reference to *Gowli Buddanna v Commissioner of Income Tax* and *Sheela Devi v Lal Chand*. Illustrate.

Principle: Under the Mitakshara school, a son acquires an interest in ancestral (coparcenary) property by birth itself, and the joint family property devolves on the surviving coparceners by survivorship. Under the Dayabhaga school, prevalent mainly in Bengal and Assam, no one acquires a right by birth; a son's right arises only on the death of the father, and property then devolves by succession (inheritance), not survivorship. A coparcenary under Mitakshara is a narrower body of persons within the joint family who acquire an interest by birth and have a right to demand partition.

Gowli Buddanna v Commissioner of Income Tax, Mysore	
Citation	AIR 1966 SC 1523
Facts	On the death of the last male member of a joint family, the family consisted of a widow, a son and unmarried daughters. The question arose whether the property continued to be joint family (Hindu undivided family) property for income tax purposes, even though there was, for the time being, only one male member.
Issue	Can property remain "joint family property" of a Hindu undivided family even when there is only one surviving male member, along with female members?
Held	The Supreme Court held that the property retained its character as joint family property, since a Hindu undivided family does not cease to exist merely because it is represented by a single male member with other female members; the essential feature is that the property is capable of being enjoyed by all members and is ancestral in character.

Significance	An important authority on the meaning and continuity of a Hindu joint family and its property, particularly relevant to the definition of coparcenary property.
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Sheela Devi v Lal Chand	
Citation	(2007) 1 SCC 645
Facts	A dispute concerned succession to property that had devolved before the Hindu Succession (Amendment) Act, 2005, and the question was whether the daughters could claim a share as coparceners under the unamended Mitakshara law, which recognised a right by birth only for sons.
Issue	Under the Mitakshara school as it stood prior to the 2005 Amendment, did a daughter acquire a right by birth in coparcenary property in the same manner as a son?
Held	The Supreme Court held that, on the facts (succession having opened before the 2005 Amendment), the daughters could not claim coparcenary rights under the unamended Mitakshara law, since under that law only sons acquired an interest by birth; the property devolved according to the law as it stood at the relevant time.
Significance	Illustrates the traditional Mitakshara position on the right by birth before the 2005 Amendment, which is now to be read along with the amended Section 6 and Vineeta Sharma v Rakesh Sharma (Unit V).

Illustration

A Hindu joint family under Mitakshara law consists of a father and his son; the son has a right by birth in the ancestral property, and on the father's death, the property passes by survivorship to the son if other coparceners exist, or the son simply continues to hold what was already his by birth. If the same family were governed by the Dayabhaga school (as in Bengal), the son would have no right in the property during his father's lifetime, and the property would pass to him only on the father's death by inheritance, along with other heirs, and could be dealt with freely by the father during his life.

Q2. Explain the powers of a Karta to alienate joint family property for legal necessity, with reference to **Hunoomanpersaud Panday v Mussumat Babooee Munraj Koonweree** and **Balmukund v Kamlawati**. Illustrate.

Principle: A Karta (manager) of a joint Hindu family has the power to alienate joint family property, including the shares of minor coparceners, without their consent, where the alienation is for legal necessity, for the benefit of the estate, or for the performance of indispensable religious duties. The alienee is bound to make reasonable inquiry into the existence of legal necessity, but need not verify the actual application of the money; if the Karta represents that the necessity exists and the alienee acts in good faith after due inquiry, the alienation binds the interests of the other coparceners.

Hunoomanpersaud Panday v Mussumat Babooee Munraj Koonweree	
Citation	(1856) 6 Moo Ind App 393 (Privy Council)

Facts	The manager of a Hindu family (acting as guardian for a minor) had mortgaged the minor's estate to raise money to meet certain necessary expenses. The validity of the mortgage was challenged after the minor attained majority.
Issue	What is the extent of the power of a manager of a joint Hindu family (or guardian of a minor's estate) to bind the minor's share by alienating property for necessity?
Held	The Privy Council laid down the classic proposition that the power of a manager to charge an estate not his own is, under Hindu law, a limited and qualified power that can only be exercised rightly for legal necessity, or, in the case of a bona fide lender, for what appeared to be a legal necessity after reasonable inquiry; the lender is not bound to see to the actual application of the money.
Significance	The foundational authority on legal necessity and the protection of a bona fide alienee who has made proper inquiry; the test evolved here continues to govern Karta's alienations today.

Balmukund v Kamlawati

Citation	AIR 1964 SC 1385
Facts	A Karta sold joint family property, and the sale was challenged by other coparceners on the ground that no legal necessity existed for the sale.
Issue	Was the sale by the Karta binding on the other coparceners, and what must be shown to establish legal necessity?
Held	The Supreme Court examined the evidence of necessity and reaffirmed that legal necessity need not be shown to be absolute or immediate; it is enough if the Karta acted honestly, and the purpose was one that a prudent manager would regard as necessary for the family, such as payment of government revenue, family debts, marriage expenses of family members, or similar purposes.
Significance	Reaffirms and applies the test of legal necessity to typical family expenses, illustrating the range of purposes recognised as legal necessity.

Illustration

A Karta, to pay off an urgent government land revenue demand and to meet the marriage expenses of his minor niece (a member of the joint family), sells a small portion of ancestral agricultural land to B, a bona fide purchaser who makes reasonable inquiries about the necessity for the sale. The sale binds the interests of the minor coparceners, following Hunoomanpersaud Panday and Balmukund v Kamlawati, even if it later turns out that some of the money was misapplied by the Karta, so long as B acted honestly and made proper inquiry.

Q3. Explain the doctrine of pious obligation of a son to discharge his father's debts, with reference to *Suraj Bansi Koer v Sheo Proshad Singh* and *Sidheshwar Mukherjee v Bhubneshwar Prasad Narain Singh*. Illustrate.

Principle: Under Hindu law, a son, grandson and great-grandson are under a pious obligation to pay off the debts of their father, grandfather or great-grandfather, provided the debts are not immoral or illegal (avyavaharika) and were contracted by the ancestor in his personal capacity, not as a Karta acting for legal necessity (which would bind the property directly in any case). This liability is limited to the extent of the sons' interest in the joint family property, and does not extend to their separate property.

Suraj Bansi Koer v Sheo Proshad Singh	
Citation	(1879) LR 6 IA 88 (Privy Council)
Facts	A father had incurred debts, and after his death, his sons' interest in ancestral property was sought to be proceeded against by the creditors to satisfy those debts.
Issue	To what extent is a son's interest in ancestral property liable for his father's personal debts under the doctrine of pious obligation, and can a creditor proceed against the property even after the father's death?
Held	The Privy Council held that the sons' interest in the joint family property remains liable for the father's debts (not tainted with immorality) even after his death, and this liability can be enforced by the creditor in execution proceedings against the sons' shares, in accordance with the doctrine of pious obligation.
Significance	A leading early authority establishing that pious obligation is a real and enforceable liability attaching to the sons' shares in ancestral property, surviving the father's death.

Sidheshwar Mukherjee v Bhubneshwar Prasad Narain Singh	
Citation	AIR 1953 SC 487
Facts	A creditor sought to enforce a debt owed by the father against joint family property after the father had died, and the question arose as to the scope and continuation of the sons' pious obligation.
Issue	Does the sons' pious obligation to pay the father's debts survive the death of the father, and can a decree obtained against the father (or his estate) be executed against the sons' interest?
Held	The Supreme Court held that the pious obligation of the sons continues even after the death of the father, so long as the debt is not immoral, and their share in the joint family property remains liable to be proceeded against for the father's debts, subject to the ordinary rules of limitation and procedure.

Significance	Reaffirms and clarifies the continuing nature of the sons' pious obligation even after the father's death, an important qualification to the general rule that a personal obligation does not survive a party's death.
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Illustration

A father, during his lifetime, borrows money from B for personal (non-immoral) purposes and dies without repaying it. B can proceed against the interest of the father's sons in the ancestral joint family property to recover the debt, by virtue of the sons' pious obligation, following *Suraj Bansi Koer and Sidheshwar Mukherjee*, even though the sons themselves never borrowed the money or gave any personal guarantee, so long as the debt is not tainted with immorality (*avyavaharika*) and the sons' separate, self-acquired property is not touched.

Q4. Explain the meaning of partition under Hindu law, particularly the distinction between severance of status and actual division of property, with reference to *Kalyani v Narayanan* and *Puttorangamma v N.G. Ranganna*. Illustrate.

Principle: Partition, in its technical Hindu law sense, primarily means the severance of joint status — that is, the conversion of the joint tenancy of the coparceners into a tenancy in common, so that each coparcener's undivided share becomes a definite, ascertained share. This severance is distinct from the subsequent actual division of the property by metes and bounds, which may take time to be worked out. Severance of status can be effected merely by a clear and unequivocal declaration of intention to separate, communicated to the other coparceners, even without immediate physical division.

Kalyani v Narayanan	
Citation	(1980) 4 SCC 353
Facts	The question was whether a particular document and conduct of the parties amounted to a partition, that is, a severance of the joint status of the coparceners, or merely evidenced some lesser arrangement.
Issue	What is the essential legal meaning of "partition" under Hindu law, and is actual physical division necessary to constitute a partition?
Held	The Supreme Court reiterated the settled position that partition, in Hindu law, essentially means severance of joint status, and once such severance takes place, each member holds a defined share; actual division of the properties by metes and bounds is a mere incident of the partition and may follow later, without affecting the fact that the partition (severance of status) has already taken place.
Significance	A leading reaffirmation that severance of joint status, not physical division, is the essence of partition under Hindu law.

Puttorangamma v N.G. Ranganna	
Citation	AIR 1968 SC 1018
Facts	A coparcener communicated to the other members of the family a clear and unambiguous intention to separate from the joint family, but the family property was never actually divided by metes and bounds before the coparcener's death, and a dispute later arose about the effect of that declaration.
Issue	Can a coparcener achieve a severance of status, and thereby convert his undivided interest into a definite share, merely by declaring his intention to separate, without a formal deed of partition or an actual division of property?
Held	The Supreme Court held that a clear and unequivocal declaration of intention by a coparcener to separate from the joint family, effectively communicated to the other coparceners, brings about an immediate severance of status, even though the actual division of the properties by metes and bounds may take place later or not at all.
Significance	Establishes that even a unilateral, clearly communicated declaration of intention to separate is sufficient to sever joint status, without requiring the consent of the other coparceners or actual physical division.

Illustration

A, a coparcener in a large joint Hindu family, sends a registered notice to all the other coparceners clearly stating that he wishes to separate and take his share. Even if the family properties are not physically divided for several years afterward, A's status as a joint coparcener ends immediately upon effective communication of this declaration (*Puttorangamma v N.G. Ranganna*), and from that date he holds a definite, ascertained share as a tenant-in-common with the others, in accordance with the principle in *Kalyani v Narayanan* that severance of status, not actual division, is the essence of partition.

Q5. Explain the doctrine of antecedent debt and its effect on a father's power to alienate joint family property so as to bind his sons, with reference to *Brij Narain v Mangla Prasad*. Illustrate.

Principle: An antecedent debt is a debt that is prior in time as well as prior in fact to a transaction of alienation, and is wholly disconnected from the transaction under challenge. A Hindu father, as head of the family (even without being a mere manager acting for legal necessity), has an independent power under the doctrine of pious obligation to alienate joint family property, including his sons' interest, to discharge his own antecedent debts, provided such debts are not immoral or illegal, and the alienation itself need not be shown to be for legal necessity.

Brij Narain v Mangla Prasad	
Citation	(1923-24) 51 IA 129 (Privy Council)
Facts	A father, who had incurred debts, mortgaged joint family property to secure repayment. The sons challenged the mortgage, contending that it was not binding on their interest since it was not shown to be for legal necessity.

Issue	Can a father bind his sons' interest in joint family property by alienating it to discharge his own antecedent personal debts, even without separately proving legal necessity for the alienation itself?
Held	The Privy Council laid down a comprehensive statement of the law (often cited as containing five propositions), holding, among other things, that where the debt is antecedent and not immoral, a father can alienate joint family property, including the sons' shares, to discharge that debt, by virtue of the sons' pious obligation, and it is not necessary to independently establish legal necessity for the specific alienation, provided the debt itself was validly and honestly incurred and is antecedent to the transaction.
Significance	The leading modern authority systematically stating the law on a father's power to alienate joint family property for antecedent debts, read together with the doctrine of pious obligation.

Illustration

A father borrows a sum of money from a moneylender for his personal business, unconnected with the family, and a year later mortgages ancestral land to another creditor specifically to repay that earlier loan. Since the original debt is antecedent — both prior in time and unconnected with the mortgage transaction — and is not shown to be immoral, the mortgage can bind the sons' interest in the ancestral land under the principles in *Brij Narain v Mangla Prasad*, even though the mortgage itself may not independently qualify as being for "legal necessity" in the strict sense.

Part C — 15 Marks Questions

1. Explain the sources and schools of Hindu law. Distinguish the Mitakshara and Dayabhaga schools.

Key points: Ancient sources — Shruti, Smriti, Digests and Commentaries, Custom; modern sources — legislation, precedent, justice/equity/good conscience; the two main schools and the sub-schools of Mitakshara (Benares, Mithila, Dravida, Bombay/Maharashtra); key differences — right by birth vs right by inheritance (survivorship vs succession), father's power of alienation, women's right to coparcenary property; territorial application of Dayabhaga in Bengal and Assam.

2. Discuss the concept of joint family and coparcenary under Hindu law, and the powers, duties and liabilities of the Karta.

Key points: Formation and incidents of a Hindu joint family; coparcenary as a narrower body within the joint family; joint family property vs coparcenary property vs separate property; Karta's position (*sui generis*, not a partner or agent); powers to manage, to alienate for legal necessity, benefit of estate and indispensable duties; Karta's power to enter into contracts, to acknowledge debts, to refer disputes to arbitration; Karta's liability to render accounts; impact of the Hindu Succession (Amendment) Act, 2005 on coparcenary composition (daughters as coparceners).

3. **Explain the doctrine of pious obligation of a son to discharge his father's debts. How has this doctrine been affected by the Hindu Succession (Amendment) Act, 2005?**

Key points: *Meaning and religious basis of pious obligation; extent of liability — son, son's son and son's son's son liable for father's debts that are not immoral or illegal (avyavaharika); liability limited to the extent of interest in joint family property; doctrine of antecedent debt and its distinction from pious obligation; Section 6(4) of the Hindu Succession Act (as inserted by the 2005 Amendment) abolishing the pious obligation for debts contracted after the Amendment, subject to a saving clause for debts contracted earlier.*

4. **Discuss partition under Hindu law — its meaning, modes, and effect, including the doctrine of reopening of partition.**

Key points: *Partition as severance of joint status, distinguished from actual division of property by metes and bounds; modes of effecting partition — by agreement, by suit, by arbitration, by unequivocal declaration of intention (unilateral partition); persons entitled to a share on partition (coparceners, sons in the womb, and now daughters as coparceners); reopening of partition on grounds such as fraud, a son in the womb at the time of partition, or a coparcener omitted from partition; effect of partition on the status of the parties.*

5. **Discuss the powers of the Karta to alienate joint family property, and the circumstances in which such alienation binds the interests of other coparceners.**

Key points: *Grounds of valid alienation by Karta — legal necessity, benefit of estate, discharge of indispensable duties; distinction between alienation by Karta and by father as such; burden of proof on the alienee to show legal necessity or reasonable inquiry into its existence; effect of alienation without legal necessity — voidable at the instance of the other coparceners, not void; right of coparceners to challenge and to seek partition.*

Unit-II: Hindu Marriage — Meaning, Conditions, Ceremonies and Recent Trends

Part A — 5 Marks Questions

1. Define marriage under Hindu law and explain whether it is a sacrament or a contract.
2. State the conditions for a valid Hindu marriage under Section 5 of the Hindu Marriage Act, 1955.
3. Explain the ceremonies essential for a valid Hindu marriage under Section 7.
4. Explain the law relating to registration of Hindu marriages under Section 8.
5. Explain the doctrine of monogamy under Hindu law and the effect of a bigamous marriage.
6. Explain the conditions relating to age at marriage and their legal effect.
7. Explain the concept of sapinda relationship and the degrees of prohibited relationship.
8. Distinguish void and voidable Hindu marriages in brief.
9. Explain the legal recognition, if any, of live-in relationships in India.
10. Write a short note on the Special Marriage Act, 1954 as an alternative to Hindu marriage.
11. Explain the mental capacity conditions for a valid marriage under Section 5(ii).
12. Explain the punishment for bigamy under the law applicable to Hindus.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain the ceremonies necessary for a valid Hindu marriage, with reference to Bhaurao Shankar Lokhande v State of Maharashtra and Priya Bala Ghosh v Suresh Chandra Ghosh. Illustrate.

Principle: Under Section 7 of the Hindu Marriage Act, 1955, a Hindu marriage may be solemnised in accordance with the customary rites and ceremonies of either party, and where such rites include the saptapadi (taking of seven steps by the bride and bridegroom jointly before the sacred fire), the marriage becomes complete and binding when the seventh step is taken. Where essential ceremonies are not performed, there is, in the eyes of law, no valid marriage at all, which is particularly significant for a prosecution for bigamy, since bigamy requires proof of a second "marriage" with the necessary ceremonies.

Bhaurao Shankar Lokhande v State of Maharashtra	
Citation	AIR 1965 SC 1564
Facts	The accused was prosecuted for bigamy on the allegation that he had contracted a second marriage while his first marriage subsisted, but the evidence showed that the essential ceremonies for a valid Hindu marriage, in particular saptapadi, had not been performed at the alleged second marriage.
Issue	Can a person be convicted for bigamy where the "second marriage" was not solemnised with the essential ceremonies required for a valid Hindu marriage?
Held	The Supreme Court held that, in the absence of proof that the essential ceremonies (such as saptapadi, where applicable by custom) were performed, the alleged second marriage was not a valid marriage in the eyes of law, and hence

	the offence of bigamy, which presupposes two valid marriages, was not established.
Significance	Establishes that proof of essential ceremonies is indispensable both to the validity of a Hindu marriage and to a prosecution for bigamy based on a second such marriage.

Priya Bala Ghosh v Suresh Chandra Ghosh

Citation	AIR 1971 SC 1153
Facts	In a case concerning the validity of a marriage, the question arose as to what evidence could establish that the essential ceremonies had, in fact, been performed, especially where there is long, continuous cohabitation as husband and wife.
Issue	Can courts presume that the necessary ceremonies for a valid marriage were performed, from evidence of long cohabitation and treatment of the parties as husband and wife by society?
Held	The Supreme Court held that, in the absence of direct evidence, courts may in appropriate circumstances draw a presumption of a valid marriage (including that the necessary ceremonies were performed) from long and continuous cohabitation as husband and wife, though this presumption can be rebutted by strong contrary evidence.
Significance	Clarifies that while essential ceremonies remain necessary, their performance can, in suitable cases, be inferred from long cohabitation and social recognition of the relationship as marriage.

Illustration

A and B live together as husband and wife for over twenty years, are treated as a married couple by their family and society, but no direct eyewitness evidence of the wedding ceremony survives. A court may, following Priya Bala Ghosh, presume that a valid marriage, with the necessary ceremonies, took place between them. By contrast, if C is prosecuted for bigamy on the allegation of a second "marriage" with D, but it is shown that no priest performed any ceremony and there was no saptapadi or its customary equivalent, the prosecution for bigamy will fail, as in Bhaurao Shankar Lokhande, since there is no valid second marriage in law.

Q2. Explain the doctrine of monogamy and the consequences of bigamy under Hindu law, with reference to Sarla Mudgal v Union of India and Lily Thomas v Union of India. Illustrate.

Principle: Section 5(i) of the Hindu Marriage Act, 1955 requires that neither party has a spouse living at the time of the marriage, thereby enshrining the principle of monogamy for Hindu marriages. A marriage in contravention of this condition is void under Section 11, and the party contracting such a bigamous marriage is also liable for the offence of bigamy under the general criminal law. A significant issue has arisen where a Hindu husband converts to Islam solely to circumvent this bar and contracts a second marriage while the first Hindu marriage subsists.

Sarla Mudgal, President, Kalyani v Union of India	
Citation	(1995) 3 SCC 635
Facts	In several cases clubbed together, Hindu husbands, without obtaining a divorce from their first wives under the Hindu Marriage Act, converted to Islam and contracted second marriages, contending that as Muslims they were entitled to practise polygamy, and that their earlier Hindu marriages had automatically dissolved upon conversion.
Issue	Does a Hindu husband's conversion to Islam, by itself, dissolve his earlier marriage solemnised under the Hindu Marriage Act, and can he thereby validly contract a second marriage while the first marriage subsists?
Held	The Supreme Court held that conversion to another religion does not, by itself, dissolve a marriage solemnised under the Hindu Marriage Act; the first marriage continues to subsist in law unless dissolved by a decree of divorce under that Act. A second marriage contracted after conversion, without such a decree, is void, and the husband is liable for the offence of bigamy.
Significance	A landmark judgment preventing the misuse of religious conversion to escape the doctrine of monogamy under the Hindu Marriage Act, and highlighting the need for a uniform civil code.

Lily Thomas v Union of India	
Citation	(2000) 6 SCC 224
Facts	Persons who had been proceeded against under Sarla Mudgal's principle sought a review or reconsideration of that decision, challenging its correctness and its consequences for their criminal liability for bigamy.
Issue	Was the decision in Sarla Mudgal correctly decided, and can a Hindu husband who converts to Islam and remarries, without dissolving the first marriage under the Hindu Marriage Act, be validly prosecuted for bigamy?
Held	The Supreme Court reaffirmed and upheld the reasoning in Sarla Mudgal, holding that such a conversion followed by remarriage, while the first Hindu marriage subsists undissolved, does constitute the offence of bigamy, and the criminal liability so imposed does not violate the freedom of religion guaranteed under the Constitution.
Significance	Reaffirmed and settled the law laid down in Sarla Mudgal, closing the door on using religious conversion as a device to defeat the rule of monogamy.

Illustration

A, a Hindu, is married to B under Hindu rites. Without obtaining a divorce, A converts to Islam and marries C, believing that as a Muslim he can have more than one wife. Following Sarla Mudgal and Lily Thomas, A's marriage to B continues to subsist in law despite his conversion, his marriage

to C is void, and A can be prosecuted for bigamy, since a religious conversion cannot be used as a device to escape the doctrine of monogamy that governed his first marriage.

Q3. Discuss recent trends in the institution of marriage in India, particularly the protection extended to inter-caste marriages and the legal recognition of live-in relationships, with reference to *Lata Singh v State of U.P.* and *D. Velusamy v D. Patchaiammal*. Illustrate.

Principle: Modern Indian law protects the constitutional right of a major to choose a spouse across caste and religious lines, and courts have consistently held that inter-caste or inter-religious marriage between consenting adults cannot be interfered with by family or community, even though this remains a subject of social resistance in parts of India. Separately, Indian courts and legislation have extended limited legal recognition to certain long-term live-in relationships, particularly for the purpose of maintenance and protection from domestic violence, without equating them fully with formal marriage.

Lata Singh v State of U.P.	
Citation	(2006) 5 SCC 475
Facts	A woman, a major, married a man of a different caste against the wishes of her family, and was harassed and threatened, and her family filed false criminal cases against the husband and his relatives to pressurise the couple.
Issue	Can the family or community lawfully interfere with, harass, or take action against a major woman for marrying a man of her choice, including across caste lines?
Held	The Supreme Court held that once a woman, being a major, marries a man of her choice, her marriage cannot be interfered with by her family or the community, and directed the police and administration to take strict action against those who harass, threaten or commit violence against such couples. The Court also urged eradication of the social evil of honour-related persecution of couples in inter-caste and inter-religious marriages.
Significance	A significant authority protecting the constitutional right to choice in marriage against family and community pressure, particularly in inter-caste marriages.

D. Velusamy v D. Patchaiammal	
Citation	(2010) 10 SCC 469
Facts	A woman claimed maintenance as the "wife" of a man on the basis of a long period of cohabitation, raising the question of whether her relationship qualified as a "relationship in the nature of marriage" for the purposes of a specific protective statute for women.
Issue	What are the essential conditions for a live-in relationship to be treated as a "relationship in the nature of marriage" under the Protection of Women from Domestic Violence Act, 2005, entitling a woman to the remedies available under that Act?

Held	The Supreme Court laid down criteria for such a relationship, including that the couple must hold themselves out to society as akin to spouses, must be of legal age to marry, must be otherwise qualified to enter into a legal marriage (including being unmarried), and must have voluntarily cohabited for a significant period, resembling a marriage; a relationship that does not meet these criteria (such as a mere "keeping" arrangement) is not covered.
Significance	A leading authority laying down the test for when a live-in relationship can attract the protective and maintenance provisions available to a "wife" under special legislation, without equating every live-in relationship with marriage.

Illustration

A woman who is a major marries a man from a different caste against the wishes of both families; if her relatives file false cases against the couple or threaten them, the couple can seek police protection, and courts will act against such harassment, following *Lata Singh v State of U.P.* Separately, if a man and a woman, both unmarried and eligible to marry, live together openly as a couple for many years and are treated by society as akin to spouses, but later separate, the woman may claim maintenance under the Protection of Women from Domestic Violence Act, 2005 by showing that the relationship meets the tests laid down in *D. Velusamy v D. Patchaiammal*.

Q4. Explain the law relating to the registration of Hindu marriages, with reference to *Seema v Ashwani Kumar*. Illustrate.

Principle: Section 8 of the Hindu Marriage Act, 1955 enables (but under the Central Act does not compulsorily require) State Governments to make rules for the registration of Hindu marriages, mainly for the purpose of facilitating proof of marriage. Registration is generally regarded as directory rather than mandatory for the validity of the marriage under the Central Act, unless a particular State law makes it compulsory. However, growing awareness of the difficulties caused by unregistered marriages, particularly for women, led the Supreme Court to direct compulsory registration of all marriages across India.

Seema v Ashwani Kumar	
Citation	(2006) 2 SCC 578
Facts	In the context of a matrimonial dispute, the Supreme Court took up, as a matter of general public importance, the absence of a uniform and compulsory system for registering marriages in India, which often caused hardship, particularly to women seeking to prove their marriage in maintenance, inheritance and other proceedings.
Issue	Should the registration of marriages of all citizens, irrespective of religion, be made compulsory throughout India, and who should frame the necessary procedure?
Held	The Supreme Court directed that marriages of all persons who are citizens of India, belonging to various religions, should be made compulsorily registrable in their respective States, and directed State Governments to notify the procedure for registration within a specified period, holding that this would help prevent

	child marriages, ensure a minimum age for marriage, enable a wife to claim maintenance, and provide a means to check bigamy.
Significance	A landmark direction leading to the widespread introduction of compulsory marriage registration rules across Indian States, significantly strengthening the evidentiary and protective aspects of Section 8 of the Hindu Marriage Act.

Illustration

A Hindu couple marries with full ceremonies but does not register the marriage. Years later, when the wife seeks maintenance or a share in her husband's property, the absence of a registration certificate may make it more difficult for her to readily prove the marriage in the face of denial by the husband's family. Following the direction in *Seema v Ashwani Kumar*, many States have now made registration of marriages compulsory, so that a Hindu marriage today would ordinarily also be registered under the applicable State rules, providing ready documentary proof and easing the burden on the wife in such disputes, even though the marriage's validity under the Hindu Marriage Act itself does not depend on registration.

Part C — 15 Marks Questions

1. **Discuss the nature of Hindu marriage — sacrament or contract — and the conditions for a valid Hindu marriage under Section 5 of the Hindu Marriage Act, 1955.**

Key points: Sacramental concept in classical Hindu law (*samskara*, indissoluble union) vs the modern statutory, quasi-contractual character after the Hindu Marriage Act, 1955; the five conditions in Section 5 — monogamy, mental capacity, age (21 for the groom and 18 for the bride), prohibited degrees, sapinda relationship, and their exceptions where custom permits; consequences of contravention.

2. **Discuss the ceremonies and registration of Hindu marriage. Is registration mandatory for the validity of a marriage?**

Key points: Section 7 — ceremonies including *saptapadi* where that is the custom; customary ceremonies vary by community; Section 8 — registration is directory and not a condition of validity under the Central Act unless a State amendment makes it compulsory; *Seema v Ashwani Kumar* (Supreme Court direction for compulsory registration of all marriages); evidentiary value of registration.

3. **Discuss the doctrine of monogamy under Hindu law and the legal consequences of bigamy, including conversion to another religion to contract a second marriage.**

Key points: Section 5(i) and Section 17 of the Hindu Marriage Act; bigamy as an offence under Section 494 of the erstwhile Indian Penal Code (now the corresponding provision of the *Bharatiya Nyaya Sanhita*, 2023); status of the second marriage as void; *Sarla Mudgal v Union of India* and *Lily Thomas v Union of India* on conversion to Islam solely to solemnise a second marriage while the first subsists.

4. Discuss the recent trends in the institution of marriage in India, including inter-caste and inter-religious marriages and live-in relationships.

Key points: Constitutional protection of the right to choose a life partner (Article 21); *Lata Singh v State of U.P.* on protection for adults marrying against family wishes; the Special Marriage Act, 1954 as a secular alternative; live-in relationships and "relationship in the nature of marriage" under the Protection of Women from Domestic Violence Act, 2005; *D. Velusamy v D. Patchaiammal* on the tests for such a relationship; social and legal debate on these trends.

Unit-III: Matrimonial Remedies under the Hindu Marriage Act, 1955

Part A — 5 Marks Questions

1. Explain restitution of conjugal rights under Section 9 of the Hindu Marriage Act, 1955.
2. Explain the grounds on which a Hindu marriage is void under Section 11.
3. Explain the grounds on which a Hindu marriage is voidable under Section 12.
4. Explain judicial separation under Section 10.
5. Explain the concept of irretrievable breakdown of marriage.
6. Explain the grounds of divorce available to both husband and wife under Section 13(1).
7. Explain the special grounds of divorce available only to the wife under Section 13(2).
8. Explain divorce by mutual consent under Section 13B.
9. Explain maintenance pendente lite under Section 24 of the Hindu Marriage Act.
10. Explain permanent alimony and maintenance under Section 25.
11. Explain the importance of conciliation in matrimonial disputes.
12. Explain the objects and functions of Family Courts under the Family Courts Act, 1984.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Discuss restitution of conjugal rights under Section 9 of the Hindu Marriage Act, 1955 and the debate on its constitutionality, with reference to T. Sareetha v T. Venkata Subbaiah and Saroj Rani v Sudarshan Kumar Chadha. Illustrate.

Principle: Section 9 of the Hindu Marriage Act enables either spouse to apply to the court for restitution of conjugal rights where the other spouse has, without reasonable excuse, withdrawn from the society of the petitioner. If the court is satisfied that the statement made in the petition is true and there is no legal ground why the relief should not be granted, it may pass a decree for restitution of conjugal rights. The remedy became controversial because of its implications for individual autonomy and privacy, particularly of women.

T. Sareetha v T. Venkata Subbaiah	
Citation	AIR 1983 AP 356 (Andhra Pradesh High Court)
Facts	A wife challenged a decree for restitution of conjugal rights passed against her, contending that the remedy compelled cohabitation and marital intercourse against her will, thereby infringing her fundamental rights.
Issue	Is Section 9 of the Hindu Marriage Act, which enables a court to order restitution of conjugal rights, constitutionally valid, given its impact on the right to privacy and personal liberty, particularly of the wife?
Held	The Andhra Pradesh High Court held Section 9 to be unconstitutional and void, being violative of Articles 14 and 21 of the Constitution, on the ground that it forced unwilling sexual cohabitation and denied a spouse (in practice, mostly the wife) the choice over her own body, thereby offending her right to privacy and human dignity.

Significance	An influential, though later overruled, decision voicing strong constitutional objections to the remedy of restitution of conjugal rights.
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Saroj Rani v Sudarshan Kumar Chadha	
Citation	AIR 1984 SC 1562
Facts	The correctness of the Andhra Pradesh High Court's view in T. Sareetha, along with a contrary view taken by the Delhi High Court, came up for consideration before the Supreme Court in an appeal concerning the same remedy.
Issue	Is Section 9 of the Hindu Marriage Act unconstitutional, or does it serve a legitimate social purpose of preserving the marriage and encouraging cohabitation?
Held	The Supreme Court upheld the constitutional validity of Section 9, disagreeing with T. Sareetha, and held that the purpose of the section is to offer an inducement for the estranged parties to reunite the matrimonial home, and it does not compel actual sexual intercourse, since it operates through the ordinary machinery of civil execution (attachment of property) rather than personal compulsion; the provision was held not to violate Articles 14 or 21.
Significance	Settled the law in India, upholding the constitutionality of Section 9 and the remedy of restitution of conjugal rights, while also holding that a decree under Section 9 that remains unexecuted for a specified period is itself a ground for divorce under Section 13(1A).

Illustration

A wife leaves the matrimonial home without any reasonable cause and refuses to return despite the husband's repeated requests. The husband may file a petition under Section 9 for restitution of conjugal rights; if granted and not complied with, and if the parties do not resume cohabitation for the statutory period, either party may then seek divorce under Section 13(1A) on the strength of the unexecuted decree, following the reasoning in *Saroj Rani v Sudarshan Kumar Chadha*, which treats the remedy as a step towards either reconciliation or, failing that, a clean and lawful route to divorce.

Q2. Explain cruelty as a ground for divorce under the Hindu Marriage Act, 1955, with reference to *N.G. Dastane v S. Dastane* and *Samar Ghosh v Jaya Ghosh*. Illustrate.

Principle: Cruelty, as a ground for divorce under Section 13(1)(ia), includes both physical and mental cruelty, and is not confined to acts that endanger life, limb or health; it extends to conduct that causes such mental pain and suffering that it becomes impossible for the aggrieved spouse to continue to live with the other. Whether particular conduct amounts to cruelty depends on the facts of each case, the social and cultural background of the parties, and the cumulative effect of the conduct rather than isolated incidents.

N.G. Dastane v S. Dastane	
Citation	(1975) 2 SCC 326
Facts	A husband sought judicial separation on the ground of cruelty, alleging that his wife had behaved in a manner (including certain threatening acts and statements) that made cohabitation intolerable; the wife denied the allegations, and the standard of proof required in matrimonial cruelty cases was in issue.
Issue	What is the standard of proof required to establish cruelty in a matrimonial case — the criminal standard of proof beyond reasonable doubt, or the civil standard of preponderance of probabilities?
Held	The Supreme Court held that matrimonial proceedings are civil proceedings, and the standard of proof required is preponderance of probabilities, not proof beyond reasonable doubt as in a criminal trial. On the facts, the wife's conduct was found to amount to cruelty, but since the husband had condoned it by resuming cohabitation, the decree was for judicial separation rather than divorce.
Significance	A foundational authority both on the meaning of cruelty and on the applicable standard of proof in matrimonial cases, and also on the doctrine of condonation.

Samar Ghosh v Jaya Ghosh	
Citation	(2007) 4 SCC 511
Facts	A husband, a senior civil servant, sought divorce on the ground of mental cruelty, citing a prolonged pattern of the wife's cold, indifferent and hostile behaviour, including refusal of physical relations and a general breakdown of the marital relationship over a long period, without any single dramatic incident.
Issue	What kinds of conduct, especially in the absence of any single grave incident, can amount to "mental cruelty" sufficient to justify a decree of divorce?
Held	The Supreme Court laid down an illustrative (non-exhaustive) list of situations that may amount to mental cruelty, such as sustained unjustifiable conduct causing continuous mental pain, persistent denial of physical relationship without valid reason, prolonged separation with an unrepairable breakdown of the marital bond, and conduct that renders cohabitation practically impossible when weighed cumulatively, and granted the decree of divorce on the ground of mental cruelty.
Significance	The leading modern authority providing a comprehensive framework for identifying mental cruelty, widely relied upon by courts in subsequent cases.

Illustration

A wife constantly humiliates her husband in front of relatives, makes false complaints to his employer to damage his career, and refuses, without any medical or other justifiable reason, to have any marital relationship with him for several years. Applying the guidance in Samar Ghosh v Jaya Ghosh, this sustained pattern of conduct, taken cumulatively, may amount to mental cruelty

entitling the husband to a decree of divorce, even though no single incident by itself may appear dramatic; and, as clarified in *N.G. Dastane v S. Dastane*, he need only establish this by a preponderance of probabilities, the ordinary civil standard, and not beyond reasonable doubt.

Q3. Explain the concept of irretrievable breakdown of marriage as a ground for divorce, with reference to *Naveen Kohli v Neelu Kohli* and *Manish Goel v Rohini Goel*. Illustrate.

Principle: Irretrievable breakdown of marriage refers to a situation where the marriage has broken down beyond any possibility of repair, such that continuing the legal tie serves no purpose and only prolongs the suffering of the parties, although the marriage may not fit neatly within any of the specific fault-based grounds listed in Section 13. It is not, as such, a statutory ground for divorce under the Hindu Marriage Act, but the Supreme Court has, in appropriate cases, exercised its special constitutional power under Article 142 to grant divorce on this basis, while also recommending that Parliament amend the law to make it a specific ground.

Naveen Kohli v Neelu Kohli	
Citation	(2006) 4 SCC 558
Facts	The parties had been living separately for a long period, with a history of extremely bitter and hostile litigation, mutual allegations, and complete absence of any prospect of reconciliation, though the case did not squarely fit within the ordinary grounds of divorce as pleaded and proved.
Issue	Where a marriage has completely and irretrievably broken down, with no possibility of the parties ever living together again, should the court grant a divorce even though the case may not strictly fit within an enumerated statutory ground, and should the law be reformed to add this as a specific ground?
Held	The Supreme Court, exercising its powers under Article 142 of the Constitution to do complete justice, granted a decree of divorce on the ground of the marriage having irretrievably broken down, and strongly recommended that the Hindu Marriage Act be amended by Parliament to introduce irretrievable breakdown of marriage as a specific, independent ground for divorce.
Significance	A leading case highlighting the gap in the statutory grounds for divorce and using Article 142 to grant relief where continuing an empty marital tie would serve no purpose.

Manish Goel v Rohini Goel	
Citation	(2010) 4 SCC 393
Facts	In a case where the parties sought a waiver of the statutory cooling-off period and other formalities to obtain a quick divorce by mutual consent, questions were raised about the scope of the Supreme Court's power under Article 142 to grant divorce on the ground of irretrievable breakdown of marriage, which is not a ground recognised by the Hindu Marriage Act itself.

Issue	Can the Supreme Court, in exercise of its power under Article 142, grant a divorce on the ground of irretrievable breakdown of marriage as a matter of course, even where the statute itself does not recognise this ground, and even in cases that do not independently reach the Supreme Court?
Held	The Supreme Court clarified that the power to grant divorce on the ground of irretrievable breakdown of marriage under Article 142 is an extraordinary power available only to the Supreme Court itself, exercised sparingly in appropriate cases, and it cannot be treated as a general, routinely available ground for divorce before the trial courts or High Courts, since irretrievable breakdown of marriage is, as yet, not a statutory ground under the Hindu Marriage Act.
Significance	Clarifies the limited and exceptional nature of the Article 142 power in this context, distinguishing it from an ordinary statutory ground available to all litigants.

Illustration

A husband and wife have lived separately for over a decade, have exchanged multiple criminal and civil cases against each other, and there is no realistic possibility of them ever resuming married life, though neither can strictly prove a specific fault ground such as cruelty or desertion to the satisfaction of a trial court. If such a case reaches the Supreme Court, it may, following *Naveen Kohli v Neelu Kohli*, grant a divorce under Article 142 on the ground of irretrievable breakdown of marriage; however, as clarified in *Manish Goel v Rohini Goel*, the parties cannot simply approach a Family Court or High Court and expect a divorce purely on this ground, since it remains, for courts other than the Supreme Court, outside the statutory grounds presently available under the Hindu Marriage Act.

Q4. Explain the law relating to divorce by mutual consent under Section 13B of the Hindu Marriage Act, 1955, with reference to *Sureshta Devi v Om Prakash* and *Amardeep Singh v Harveen Kaur*. Illustrate.

Principle: Section 13B permits a husband and wife to jointly present a petition for divorce on the ground that they have been living separately for a specified period, have not been able to live together, and have mutually agreed that the marriage should be dissolved. The section contemplates two stages: the filing of the joint petition, and a subsequent motion, ordinarily not earlier than six months and not later than eighteen months after the petition, at which the mutual consent must still subsist; either party may unilaterally withdraw consent at any time before the decree is passed.

Sureshta Devi v Om Prakash	
Citation	(1991) 2 SCC 25
Facts	After filing a joint petition for divorce by mutual consent, the wife withdrew her consent before the second motion, but the husband contended that once the joint petition was filed, the wife could not unilaterally withdraw her consent.
Issue	Can a party unilaterally withdraw consent to a divorce petition filed under Section 13B at any time before the decree is actually passed, or is the consent, once given at the time of filing the petition, irrevocable?

Held	The Supreme Court held that mutual consent must continue to subsist till the second motion stage and, indeed, until the decree is passed; either party is free to unilaterally withdraw the consent at any time before the decree, and the court cannot grant a decree of divorce on the basis of consent that has since been withdrawn.
Significance	Established that consent under Section 13B must be genuine and continuing, and can be withdrawn unilaterally at any stage before the decree, protecting a party from being forced into an unwanted divorce.

Amardeep Singh v Harveen Kaur	
Citation	(2017) 8 SCC 746
Facts	A couple who had filed a joint petition for mutual consent divorce, and who had lived separately for a long time with all disputes genuinely settled, sought a waiver of the mandatory six-month "cooling-off" period between the two motions provided under Section 13B(2), to obtain an early divorce.
Issue	Is the minimum period of six months between the two motions under Section 13B(2) mandatory in every case, or can it be waived by the court in appropriate circumstances?
Held	The Supreme Court held that the period specified in Section 13B(2) is directory, not mandatory, and can be waived by the court, in its discretion, where it is satisfied that all efforts at reconciliation have genuinely failed, the parties have settled their differences including alimony and other issues, and the waiting period would only prolong their agony without serving any purpose.
Significance	Provides important relief to parties in genuine mutual consent cases, allowing courts to waive the cooling-off period to prevent unnecessary hardship.

Illustration

A husband and wife, after resolving all disputes over property and children, jointly file a petition under Section 13B stating that they have lived separately for over a year and wish to divorce by mutual consent. If, before the second motion, the wife changes her mind and refuses to proceed, the court cannot grant the divorce against her wishes, following *Sureshta Devi v Om Prakash*, since her consent must continue till the decree. If, however, both spouses remain firm in their mutual consent and satisfy the court that reconciliation is impossible and all issues are settled, the court may, following *Amardeep Singh v Harveen Kaur*, waive the usual six-month waiting period and grant an early divorce.

Q5. Explain the law relating to maintenance pendente lite and permanent alimony under the Hindu Marriage Act, 1955, with reference to *Jasbir Kaur Sehgal v District Judge, Dehradun* and *Rajnesh v Neha*. Illustrate.

Principle: Section 24 of the Hindu Marriage Act enables either spouse who has no independent income sufficient for support and for the necessary expenses of the proceeding to claim maintenance pendente lite (during the pendency of proceedings) and litigation expenses from the other spouse.

Section 25 enables the court, at the time of passing any decree or at any time thereafter, to order either party to pay permanent alimony and maintenance to the other, having regard to the income and property of both parties, their conduct, and other relevant circumstances. There is no fixed mathematical formula; the courts aim to strike a fair balance so that the dependent spouse can maintain a standard of living reasonably comparable to that enjoyed during the marriage.

Jasbir Kaur Sehgal v District Judge, Dehradun	
Citation	(1997) 7 SCC 7
Facts	A wife sought enhancement of maintenance pendente lite, and the dispute concerned the principles a court should apply in fixing an appropriate amount, given the husband's income and status and her own reasonable needs and independent means, if any.
Issue	On what principles should a court fix the amount of maintenance pendente lite (or permanent alimony), and is there a fixed formula that must be followed?
Held	The Supreme Court held that there is no fixed formula for determining maintenance; the court must consider the status of the parties, the reasonable needs of the wife (and any children in her custody), her independent income if any, and the husband's liabilities, so that the amount awarded is neither so high as to be oppressive to the husband nor so low as to make the wife's survival difficult; the object is that the wife should be able to live with reasonable comfort, considering the lifestyle she was accustomed to.
Significance	A widely cited authority on the fair, holistic and fact-sensitive approach to fixing maintenance under Sections 24 and 25.

Rajnesh v Neha	
Citation	(2021) 2 SCC 324
Facts	Given widespread inconsistency in maintenance awards across different laws (the Hindu Marriage Act, the Hindu Adoptions and Maintenance Act, the Code of Criminal Procedure, and the Protection of Women from Domestic Violence Act) and difficulties in ascertaining the true income of parties, the Supreme Court took up the issue of standardising the approach to maintenance.
Issue	How should courts across India approach applications for maintenance under different statutes, and what safeguards can ensure that maintenance orders are fair, and based on accurate financial disclosure?
Held	The Supreme Court laid down comprehensive guidelines for maintenance proceedings, including a mandatory affidavit of disclosure of assets and liabilities by both parties in a prescribed format, factors relevant for determining the quantum of maintenance (such as status of parties, reasonable needs, earning capacity, liabilities, standard of living), and directions on the date from which maintenance should be payable, aiming for uniformity and preventing suppression of income.

Significance

A landmark, comprehensive modern authority streamlining maintenance law across statutes, including maintenance pendente lite and permanent alimony under the Hindu Marriage Act.

Illustration

During the pendency of divorce proceedings, a wife who has no independent income applies for maintenance pendente lite under Section 24. The court will consider the husband's income, the standard of living the family enjoyed, and the wife's reasonable expenses, applying the fair-balance approach from *Jasbir Kaur Sehgal*, and will also require both parties to file a full affidavit of their assets and income, following the standardised procedure laid down in *Rajnesh v Neha*, to arrive at a just amount of interim maintenance.

Part C — 15 Marks Questions

1. Discuss restitution of conjugal rights under Section 9 of the Hindu Marriage Act, 1955 — its meaning, the constitutionality debate and defences.

Key points: *Meaning of restitution of conjugal rights; T. Sareetha v T. Venkata Subbaiah (Andhra Pradesh High Court declaring Section 9 unconstitutional as violative of the right to privacy and dignity); Saroj Rani v Sudarshan Kumar Chadha (Supreme Court upholding the constitutionality of Section 9); defences available — reasonable excuse for withdrawal from society; use of a decree under Section 9 as a ground for divorce under Section 13(1A).*

2. Discuss the grounds for nullity of marriage under the Hindu Marriage Act, 1955 — void and voidable marriages.

Key points: *Section 11 — marriages void ab initio (bigamy, sapinda, prohibited degrees without custom); Section 12 — voidable marriages (impotence, unsoundness of mind or mental disorder, consent obtained by fraud or force, pre-marriage pregnancy by another man); distinction in legal consequences between a void and a voidable marriage; legitimacy of children of void and voidable marriages under Section 16; limitation for filing a petition under Section 12.*

3. Discuss cruelty and desertion as grounds for divorce under Section 13 of the Hindu Marriage Act, with reference to decided cases.

Key points: *Definition and evolving concept of cruelty — physical and mental; N.G. Dastane v S. Dastane (standard of proof — preponderance of probabilities, not proof beyond reasonable doubt); Samar Ghosh v Jaya Ghosh (illustrative instances of mental cruelty); desertion — factum of separation and animus deserendi, statutory period, desertion without reasonable cause and without consent.*

4. Discuss divorce by mutual consent and the doctrine of irretrievable breakdown of marriage as grounds for divorce.

Key points: *Section 13B — twin requirements of mutual consent at the time of filing and at the time of the motion for divorce, cooling-off period of six months; Sureshta Devi v Om Prakash (consent must subsist till the decree, can be unilaterally withdrawn); Amardeep Singh v Harveen Kaur (Supreme Court permitting waiver of the six-month period in appropriate cases); irretrievable breakdown of marriage — not yet a statutory ground under the Hindu Marriage Act; Naveen Kohli v Neelu Kohli (Supreme Court recommendation to add it as a*

ground); *Manish Goel v Rohini Goel* (limits on invoking Article 142 to grant divorce on this ground).

5. Explain maintenance pendente lite and permanent alimony under the Hindu Marriage Act. Discuss the importance of conciliation and the role of Family Courts in resolving matrimonial disputes.

Key points: Sections 24 and 25 — maintenance during the pendency of proceedings and permanent alimony after the decree; factors for quantum — income, status, reasonable needs, conduct of parties; *Jasbir Kaur Sehgal v District Judge, Dehradun* and *Rajnesh v Neha* (Supreme Court guidelines for maintenance and disclosure of assets); Section 23(2) — duty of the court to attempt reconciliation before granting relief in a contested matter; the Family Courts Act, 1984 — objects, composition, informal procedure, emphasis on settlement and counselling.

Unit-IV: Adoption, Maintenance and Guardianship

Part A — 5 Marks Questions

1. Define adoption under Hindu law and state its essential requisites.
2. Who may be adopted? Explain the conditions under Section 10 of the Hindu Adoptions and Maintenance Act, 1956.
3. Who has the capacity to adopt under Sections 7 and 8 of the Hindu Adoptions and Maintenance Act, 1956?
4. Explain the effect of a valid adoption on the rights of the adopted child under Section 12.
5. Explain inter-country adoption and the role of the Central Adoption Resource Authority (CARA).
6. Write a short note on the Hague Convention on Inter-country Adoption, 1993.
7. Explain the persons entitled to maintenance under the Hindu Adoptions and Maintenance Act, 1956.
8. Explain the factors considered by courts in determining the quantum of maintenance under Section 23.
9. Define guardian and ward under the Hindu Minority and Guardianship Act, 1956.
10. Explain natural guardians of a Hindu minor under Section 6.
11. Explain the concept of "welfare of the minor" as the paramount consideration in guardianship matters.
12. Explain testamentary guardianship under Section 9 of the Hindu Minority and Guardianship Act, 1956.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Explain the essential conditions of a valid adoption and its legal effect under the Hindu Adoptions and Maintenance Act, 1956, with reference to *Sawan Ram v Kalawati* and *Sitabai v Ramchandra*. Illustrate.

Principle: A valid adoption under the Hindu Adoptions and Maintenance Act, 1956 requires that the person adopting has the capacity and the right to adopt (Sections 7 and 8), the person giving in adoption has the right to do so (Section 9), and the person adopted is capable of being taken in adoption (Section 10), along with the other conditions in Section 11 (such as the adoptive parents not already having a Hindu son/daughter of that gender, as the case may be). Under Section 12, an adopted child is deemed to be the child of the adoptive parents for all purposes from the date of adoption, and is deemed to have severed all ties with the family of birth, subject to certain savings.

Sawan Ram v Kalawati	
Citation	AIR 1967 SC 1761
Facts	A Hindu widow adopted a son, and after her death, a dispute arose as to whether the adoption was valid, given questions about her capacity to adopt as a widow and the effect of the adoption on property that had already vested in her.

Issue	Can a Hindu widow validly adopt a son on her own right under the 1956 Act, and what is the effect of such adoption on property that had already vested in her by inheritance?
Held	The Supreme Court held that under the Hindu Adoptions and Maintenance Act, 1956, a widow has an independent right to adopt in her own right (unlike the more restrictive position under some aspects of the earlier customary law), and a valid adoption made by her is effective; the adopted son becomes entitled to the widow's property as her son from the date of adoption, subject to the vesting of property that had already taken place by virtue of an event (such as her husband's death) that had already occurred.
Significance	An important authority affirming a widow's independent capacity to adopt under the 1956 Act and clarifying its effect on property already vested.

Sitabai v Ramchandra	
Citation	AIR 1970 SC 343
Facts	A dispute arose regarding the rights of a son adopted by a widow, in relation to joint family property in which her deceased husband had an interest as a coparcener, raising the question of how far the adoption related back so as to give the adopted son rights akin to those of a natural-born son.
Issue	Does a son validly adopted by a widow acquire rights in the coparcenary property of the deceased husband's family, as though he had been born to the husband, and from what point does this relation-back operate?
Held	The Supreme Court held that a validly adopted son steps into the shoes of a natural-born son of the adoptive father for most purposes, including succession to coparcenary property, and this fictional relation-back operates so as to give him rights in property to the same extent as a posthumous natural son would have had, subject to the specific statutory provisions and any property that had already been validly vested or alienated before the adoption.
Significance	Illustrates the extent to which the law treats an adopted child as equivalent to a natural-born child, including for purposes of coparcenary rights, subject to statutory limitations.

Illustration

A Hindu widow, whose husband has died, wishes to adopt a son in her own right under the 1956 Act; she is fully competent to do so (*Sawan Ram v Kalawati*), and once the adoption is validly completed, the adopted son is treated, for most purposes, as if he had been born to her deceased husband, and can claim rights in the family's coparcenary property as a coparcener from the date of adoption, in line with the principle in *Sitabai v Ramchandra*, though property that had already been finally and validly distributed before the adoption is not reopened.

Q2. Discuss the safeguards and procedure for inter-country adoption of Indian children, with reference to *Lakshmi Kant Pandey v Union of India*. Illustrate.

Principle: Inter-country adoption, involving the adoption of an Indian child by foreign or non-resident Indian parents, raises special concerns about trafficking, exploitation and the welfare of the child in an unfamiliar country. Recognising these concerns, the Supreme Court, acting on a public interest petition, evolved detailed procedural safeguards to ensure that inter-country adoptions are conducted transparently, with proper scrutiny of the prospective adoptive parents, and always keeping the welfare of the child as the paramount consideration.

Lakshmi Kant Pandey v Union of India	
Citation	AIR 1984 SC 469, and subsequent orders
Facts	A public interest petition drew the Supreme Court's attention to malpractices and lack of regulation in the placement of Indian children for adoption with foreign parents, including allegations of children being exploited or trafficked under the guise of inter-country adoption.
Issue	What safeguards and procedure should be put in place to ensure that inter-country adoption of Indian children is conducted properly, with the welfare of the child as the paramount consideration, and to prevent trafficking and exploitation?
Held	The Supreme Court laid down an elaborate scheme of safeguards, including the requirement that inter-country adoptions be routed only through recognised and licensed placement agencies, a mandatory home study report of the prospective adoptive parents from a recognised agency in the foreign country, scrutiny by Indian courts before permitting the child to leave India, and continuous monitoring of the progress and welfare of the child after adoption, evolving these guidelines through a series of orders over several years.
Significance	Remains the foundational judicial framework for inter-country adoption in India, later substantially incorporated into statutory and regulatory schemes, including those administered by the Central Adoption Resource Authority (CARA).

Illustration

A couple resident abroad wishes to adopt an Indian child through a recognised adoption agency. Following the framework laid down in *Lakshmi Kant Pandey v Union of India* (as now implemented through CARA regulations under the Juvenile Justice Act, 2015), the process will involve registration with a recognised agency, preparation of a home study report by an agency in the country of residence, matching of the child with the prospective parents through the CARA portal, and final scrutiny and sanction by an Indian court or authority, with continued reporting on the child's welfare after the adoption is finalised, ensuring that the child's best interests are protected throughout the process.

Q3. Explain the law of guardianship of a Hindu minor, particularly the position of natural guardians and the paramountcy of the minor's welfare, with reference to *Githa Hariharan v Reserve Bank of India* and *Gaurav Nagpal v Sumedha Nagpal*. Illustrate.

Principle: Section 6 of the Hindu Minority and Guardianship Act, 1956 specifies the natural guardians of a Hindu minor: for a legitimate boy or unmarried girl, the father, and "after him", the mother; for an illegitimate child, the mother, and after her, the father; for a married girl, her husband. Section 13 makes the welfare of the minor the paramount consideration in the appointment or declaration of any person as guardian, overriding even the technical or literal right of a person otherwise entitled to guardianship under Section 6 if that would not serve the minor's welfare.

Githa Hariharan v Reserve Bank of India	
Citation	(1999) 2 SCC 228
Facts	A mother, though the father was alive but not actively involved in the child's care, sought to act as natural guardian for the purpose of investing funds on the child's behalf; the Reserve Bank refused to accept her application on the ground that, under a literal reading of Section 6(a), the father alone was the natural guardian "in the first instance" so long as he was alive.
Issue	Does the word "after" in Section 6(a), which provides that the mother is the natural guardian "after" the father, mean that the mother can act as natural guardian only after the father's death, or can it be read to include situations where the father is alive but not in actual charge of the minor, or is otherwise unsuitable?
Held	The Supreme Court, reading the provision in the light of the constitutional guarantee of gender equality, held that the word "after" does not necessarily mean "after the lifetime of the father", but can also mean "in the absence of the father", whether by reason of the father's disinterest, incapacity, or any other valid reason connected with the welfare of the child; accordingly, a mother can act as a natural guardian even during the father's lifetime, if circumstances so warrant.
Significance	A landmark case reading down a provision of the Hindu Minority and Guardianship Act to avoid gender discrimination, and centring the analysis on the welfare of the child.

Gaurav Nagpal v Sumedha Nagpal	
Citation	(2009) 1 SCC 42
Facts	A prolonged custody dispute arose between estranged parents over their son, with the father relying on a technical claim to custody and the mother contending

	that the child's welfare, given his attachment to her and his educational and emotional stability, required that custody remain with her.
Issue	In a custody dispute between parents, should the court be guided primarily by the technical or legal right of a party to act as guardian, or by the welfare of the child as understood in a broad and holistic sense?
Held	The Supreme Court held that in matters of guardianship and custody, the welfare of the minor is of paramount importance, and this transcends purely legal or textual rights of the parties; the court must consider the child's ordinary comfort, contentment, health, education, intellectual development and favourable surroundings, and not treat the question as a matter of the parents' competing legal rights alone.
Significance	Reaffirms the primacy of the welfare principle in Section 13 of the Hindu Minority and Guardianship Act in custody and guardianship disputes.

Illustration

A father, though legally alive and not divorced from the mother, has abandoned the family and shows no interest in his minor child's welfare, while the mother has been solely caring for and supporting the child. Following *Githa Hariharan v Reserve Bank of India*, the mother can act as the child's natural guardian even though the father is alive, since the father's absence of actual involvement justifies treating the mother as guardian. In a custody battle between the parents, a court will not mechanically favour the father merely because he is generally recognised as the "first" natural guardian under Section 6(a); instead, following *Gaurav Nagpal v Sumedha Nagpal*, it will examine which parent can better secure the child's overall welfare, education and emotional stability, and decide custody accordingly.

Q4. Explain the obligation to maintain aged parents and dependants under the Hindu Adoptions and Maintenance Act, 1956, with reference to *Nanak Chand v Chandra Kishore Aggarwal*. Illustrate.

Principle: Section 4 of the Hindu Adoptions and Maintenance Act, 1956 provides that the Act overrides any earlier text, rule or interpretation of Hindu law on matters it covers, but it does not, by itself, override other special or general laws in force. Section 20 specifically imposes an obligation on a Hindu to maintain his or her aged or infirm parents (and legitimate or illegitimate children) who are unable to maintain themselves from their own earnings or property. Courts have had to clarify the relationship between this civil-law obligation to maintain parents and the separate, though overlapping, remedy available under the general criminal procedure law (and now other special statutes).

Nanak Chand v Chandra Kishore Aggarwal

Citation	AIR 1970 SC 446
Facts	A father sought maintenance from his son under the general criminal procedure law then in force, and a question arose as to whether the enactment of the Hindu Adoptions and Maintenance Act, 1956, which also imposes an obligation on children to maintain aged parents, had impliedly repealed or ousted the remedy

	available to a father under the general (secular) maintenance provision, or whether the two remedies could coexist.
Issue	Does the Hindu Adoptions and Maintenance Act, 1956, being a special law codifying the Hindu law of maintenance, oust or override the general statutory remedy for maintenance available to parents under the general criminal procedure law?
Held	The Supreme Court held that the Hindu Adoptions and Maintenance Act, 1956 and the maintenance provisions of the general criminal procedure law operate in different fields and are not mutually exclusive; the Act does not, by virtue of Section 4, take away or override the independent statutory remedy for maintenance available to parents under the general law, and a Hindu father can proceed under either or both remedies as appropriate, subject to avoiding double recovery.
Significance	Clarifies that the codified Hindu law obligation to maintain parents supplements, rather than replaces, other available statutory remedies for maintenance.

Illustration

An elderly father, unable to maintain himself due to old age and illness and having no independent income, seeks maintenance from his adult son. He can rely on Section 20 of the Hindu Adoptions and Maintenance Act, 1956, which imposes a specific obligation on the son to maintain him, and, as clarified in *Nanak Chand v Chandra Kishore Aggarwal*, this civil obligation coexists with, and does not exclude, his right to also seek an order for maintenance under other applicable general or special laws (now including the Maintenance and Welfare of Parents and Senior Citizens Act, 2007), so that the father is not left without an effective remedy merely because more than one law provides for maintenance of parents.

Part C — 15 Marks Questions

1. **Discuss the historical background and the essential requisites of a valid adoption under the Hindu Adoptions and Maintenance Act, 1956.**

Key points: Classical Hindu law purpose of adoption (spiritual benefit, continuation of lineage) vs the modern secular purpose recognised by the Act; essentials under Sections 6, 7, 8, 10 and 11 — capacity to give and take in adoption, the person adopted must be a Hindu, unmarried (subject to custom), not already adopted, below 15 years (subject to custom), and actual giving and taking (datta homam not essential after the Act); effect of adoption under Section 12; irrevocability of a valid adoption.

2. **Discuss in-country and inter-country adoption in India, with reference to the guidelines in *Lakshmi Kant Pandey v Union of India*.**

Key points: Growth of inter-country adoption and the risks of trafficking and exploitation that prompted judicial intervention; *Lakshmi Kant Pandey v Union of India* — Supreme Court laying down detailed procedural safeguards for inter-country adoption (scrutiny agencies, home study reports, court sanction); the Hague Convention on Protection of Children and Cooperation in Respect of Inter-country Adoption, 1993; role and functions of the Central Adoption Resource Authority (CARA) under the Juvenile Justice (Care and Protection of Children) Act, 2015 and the CARA Adoption Regulations.

3. Discuss the law of guardianship under the Hindu Minority and Guardianship Act, 1956 — kinds of guardians and the paramountcy of the welfare of the minor.

Key points: *Natural guardians under Section 6 (father, mother, and in certain cases husband for a minor wife); Githa Hariharan v Reserve Bank of India (reading down "after" in Section 6(a) to allow the mother to act as natural guardian even during the father's lifetime in appropriate circumstances); testamentary guardians under Section 9; de facto guardians and Section 11 (bar on de facto guardian dealing with a minor's property); welfare of the minor as the paramount consideration under Section 13, overriding the technical right of a natural guardian; Gaurav Nagpal v Sumedha Nagpal.*

4. Discuss the law of maintenance under the Hindu Adoptions and Maintenance Act, 1956 — persons entitled to maintenance and the factors relevant to quantum.

Key points: *Persons entitled — wife, children (including illegitimate children), aged or infirm parents, and certain dependants under Section 21; obligation of a Hindu to maintain aged parents and dependants under Section 4 and its interplay with the general personal law obligation; factors under Section 23 — position and status of the parties, reasonable wants, income and property of the claimant, number of persons the claimant is entitled to be maintained by; relationship with the remedy of maintenance under Section 125 of the Code of Criminal Procedure (now the corresponding provision of the Bharatiya Nagarik Suraksha Sanhita, 2023) and the Maintenance and Welfare of Parents and Senior Citizens Act, 2007.*

Unit-V: Intestate Succession under the Hindu Succession Act, 1956

Part A — 5 Marks Questions

1. Explain the scheme of intestate succession to the property of a Hindu male under Section 8 of the Hindu Succession Act, 1956.
2. Explain the Class I heirs under the Hindu Succession Act and the rule of simultaneous succession among them.
3. Explain Class II heirs and the rule of preference among the entries.
4. Explain the general rules of succession to the property of a Hindu female under Section 15.
5. Explain source-based devolution of a Hindu female's property under Section 15(2).
6. Explain the concept of notional partition under the Hindu Succession Act.
7. Explain the provision relating to a dwelling house under the Hindu Succession Act, 1956 (as originally enacted).
8. Explain Section 14 — enlargement of a Hindu woman's limited estate into full ownership.
9. Explain the impact of the Hindu Succession (Amendment) Act, 2005 on the coparcenary rights of daughters.
10. Explain the doctrine of escheat under Hindu law.
11. Explain the disqualifications of heirs under the Hindu Succession Act.
12. Explain the doctrine of representation (per stirpes) as applied under the Hindu Succession Act.

Part B — 10 Marks Questions (Case Law with Illustrations)

Q1. Discuss the evolution of the coparcenary rights of daughters under the Hindu Succession (Amendment) Act, 2005, with reference to Prakash v Phulavati and Vineeta Sharma v Rakesh Sharma. Illustrate.

Principle: Section 6 of the Hindu Succession Act, 1956, as substituted by the Hindu Succession (Amendment) Act, 2005, provides that a daughter shall, by birth, become a coparcener in her own right in the same manner as a son, and shall have the same rights and be subject to the same liabilities in respect of coparcenary property as a son. Considerable litigation arose over whether this amendment applies only where the father (the coparcener through whom the daughter claims) was alive on the date the amendment came into force (9 September 2005), or whether the daughter's right is inherent, by virtue of birth, regardless of whether the father was alive on that date.

Prakash v Phulavati	
Citation	(2016) 2 SCC 36
Facts	A daughter claimed a share in ancestral coparcenary property as a coparcener under the amended Section 6, but her father (through whom she traced her claim) had died before the Hindu Succession (Amendment) Act, 2005 came into force.
Issue	Does a daughter acquire coparcenary rights under the amended Section 6 even if her father, the relevant coparcener, had already died before the 2005 Amendment came into force?

Held	The Supreme Court held that the benefit of the amended Section 6 is available only to a "living daughter of a living coparcener" as on the date the amendment came into force, i.e., 9 September 2005; since the father in this case had died before that date, the daughter could not claim the enhanced coparcenary rights conferred by the amendment.
Significance	Restricted the retrospective application of the 2005 Amendment, requiring the father to be alive on the date of commencement, a position that generated considerable debate and was later reconsidered.

Vineeta Sharma v Rakesh Sharma

Citation	(2020) 9 SCC 1
Facts	The correctness of the view in <i>Prakash v Phulavati</i> , and a differing view taken in another case (<i>Danamma @ Suman Surpur v Amar</i>), which had allowed a daughter's claim even though her father had died before the 2005 Amendment, were referred to a larger, three-judge Bench for an authoritative resolution.
Issue	Is a daughter's right to become a coparcener under the amended Section 6 a right conferred only from the date the amendment came into force (and only if the father was then alive), or is it an incident of birth, so that it is unconditional and does not depend on the father being alive on that date?
Held	The Supreme Court held that the right of a daughter to be a coparcener is by birth, and does not depend on whether her father, the coparcener, was alive on the date the amendment came into force. The provision is retroactive (though not retrospective in the sense of reopening settled transactions): it operates on the birth-based nature of the right, so long as no registered partition deed or a partition effected by a final court decree had already taken place before 20 December 2004 (the date of the Bill's introduction). <i>Prakash v Phulavati</i> was accordingly overruled on this point, and <i>Danamma</i> was approved on the conclusion, though its reasoning was clarified.
Significance	The authoritative and now settled statement of law on the retroactive nature of daughters' coparcenary rights under the 2005 Amendment, resolving years of conflicting decisions.

Illustration

A Hindu man died in 1995, survived by a son and a daughter, and the coparcenary property was never formally partitioned. Under *Prakash v Phulavati*, the daughter would have been denied coparcenary rights, since her father (the relevant coparcener) died before 9 September 2005. Under the settled law in *Vineeta Sharma v Rakesh Sharma*, the daughter is now entitled to claim an equal share as a coparcener, by virtue of birth, regardless of the fact that her father died well before the 2005 Amendment, provided the property was not already partitioned by a registered deed or a final court decree before 20 December 2004.

Q2. Explain the concept of notional partition under the Hindu Succession Act, 1956, with reference to Gurupad Khandappa Magdum v Hirabai Khandappa Magdum. Illustrate.

Principle: Under the scheme of the (unamended) Section 6 of the Hindu Succession Act, 1956, when a male Hindu died leaving surviving him both coparceners and Class I female heirs (or a male heir claiming through a female), the law created a legal fiction that a partition of the coparcenary property had taken place immediately before his death (a "notional partition"), so that his share could be ascertained and devolve by succession, rather than purely by survivorship. This fiction had to be worked out fully and consistently for it to serve its intended purpose.

Gurupad Khandappa Magdum v Hirabai Khandappa Magdum	
Citation	(1978) 3 SCC 383
Facts	On the death of a coparcener, his widow claimed a share in the joint family property, contending that a notional partition should be deemed to have taken place immediately before her husband's death, and that she was entitled not only to a share of the deceased's notional share by succession, but also to the share she would herself have been entitled to had an actual partition taken place during her husband's lifetime.
Issue	In working out the fiction of notional partition under Section 6, should the court give full effect to the fiction as though an actual partition had in fact taken place, including recognising the shares that other members (such as the widow, in her own right as a member entitled to a share on partition) would have received in such a partition?
Held	The Supreme Court held that once the statute directs that a partition should be assumed to have taken place, that assumption must be carried to its logical conclusion, and it must be assumed that a partition had, in fact, taken place, giving the widow her own share, as well as the deceased's notional share, which she inherited along with the other Class I heirs; it is not permissible to apply the fiction only halfway.
Significance	A landmark authority on giving full effect to the legal fiction of notional partition, significantly enlarging the effective share of widows (and, by parity of reasoning, daughters under the unamended law) in such computations.

Illustration

A joint Hindu family consists of a father, his son and his wife; on the father's death, to determine his share under the unamended Section 6, the law assumes that a partition took place immediately before his death between the father and the son, giving each a half share, and further assumes that in such a partition the widow, too, would have been entitled to a share equal to that of a son. Following Gurupad Khandappa Magdum, the widow is entitled to that share in her own right as a result of the notional partition, in addition to a share of her deceased husband's half, which she inherits along with other Class I heirs as his successor.

Q3. Discuss Section 14 of the Hindu Succession Act, 1956 and the enlargement of a Hindu woman's limited estate into full ownership, with reference to V. Tulasamma v V. Sesha Reddi. Illustrate.

Principle: Before the Hindu Succession Act, 1956, a Hindu woman ordinarily held property (such as property received in lieu of maintenance, or on partition, or by inheritance) only as a limited ("widow's" or "women's") estate, with restricted powers of alienation, and the property reverted to the reversioners of the last full owner on her death. Section 14(1) of the Act converts any property "possessed" by a female Hindu, whether acquired before or after the commencement of the Act, into her absolute property, subject to the exception in Section 14(2), which preserves a genuinely restricted estate created for the first time by an instrument such as a gift, will, or decree, where the instrument itself prescribes a restricted estate.

V. Tulasamma v V. Sesha Reddi	
Citation	(1977) 3 SCC 99
Facts	A Hindu widow, in lieu of her pre-existing right to maintenance out of joint family property, received certain properties under a compromise decree, which purported to grant her only a limited (life) interest in those properties, rather than absolute ownership.
Issue	Where a woman receives property in satisfaction of a pre-existing right (such as her right to maintenance) under an instrument (such as a compromise decree) that purports to give her only a limited estate, does Section 14(1) nevertheless enlarge her interest into an absolute estate, or does the restrictive language of the instrument bring the case within the exception in Section 14(2)?
Held	The Supreme Court held that where the property is given to a Hindu woman in recognition of, or in lieu of satisfaction of, a pre-existing right (such as a right to maintenance or a share on partition), Section 14(1) applies and enlarges her limited interest into full ownership, notwithstanding that the instrument (such as a decree) purports to confer only a restricted estate; Section 14(2) is confined to cases where the instrument itself, for the first time, creates a new, independent and restricted right, unconnected with any pre-existing right of the woman.
Significance	The leading authority distinguishing Section 14(1) from Section 14(2), and establishing the crucial "pre-existing right" test that continues to govern the enlargement of women's estates under Hindu law.

Illustration

A Hindu widow, who has a pre-existing right to maintenance out of her deceased husband's joint family property, settles a dispute with the other family members by a compromise, under which certain specific properties are allotted to her "for her lifetime only, without power of alienation". Applying *V. Tulasamma v V. Sesha Reddi*, since the properties were given to her in satisfaction of her pre-existing right to maintenance, Section 14(1) applies to enlarge her interest into full, absolute ownership, and the restrictive language in the compromise decree does not attract the exception in Section 14(2), which would apply only if the decree had, for the first time, created an entirely new and independent restricted interest unconnected to any pre-existing right of hers.

Q4. Explain the general rules of succession to the property of a Hindu female dying intestate under Section 15 of the Hindu Succession Act, 1956, with reference to Omprakash v Radhacharan. Illustrate.

Principle: Section 15(1) lays down a general order of heirs to the property of a Hindu female dying intestate: first, her sons and daughters (including children of any predeceased child) and husband; then, the heirs of the husband; then, her mother and father; then, the heirs of the father; and finally, the heirs of the mother. Section 15(2) creates special, source-based exceptions: property inherited by a Hindu female from her father or mother devolves, in the absence of any son or daughter of the deceased (including children of a predeceased son or daughter), upon the heirs of the father, rather than under the general order in Section 15(1); similarly, property inherited from her husband or father-in-law devolves, in the absence of a son or daughter, upon the heirs of the husband.

Omprakash v Radhacharan	
Citation	(2009) 15 SCC 66
Facts	A woman had been abandoned by her husband's family shortly after marriage and thereafter lived with, and was supported entirely by, her mother and her own natal family for the rest of her life. She died intestate and childless, having acquired some property (including a portion inherited from her mother, and terminal benefits from her own employment). Her husband's family (who had abandoned her) claimed her property as heirs under Section 15(1), while her mother's family, who had actually supported and cared for her, claimed to be excluded by the statutory scheme.
Issue	Under the scheme of Section 15, does the property of a childless Hindu woman devolve upon the heirs of her husband, even where the husband's family had abandoned her, in preference to her mother's family, who had actually supported her throughout her life?
Held	The Supreme Court, applying the plain language of Section 15(1) as it then stood, and finding no ambiguity, held that in the absence of children, the husband's heirs (falling in the first entry along with sons, daughters and husband) took precedence over the woman's own mother and father under the statutory order, even though this produced a harsh and seemingly unjust result on the facts, given that the husband's family had abandoned her decades earlier; the Court felt constrained by the clear language of the statute and left it to the legislature to reconsider the policy.
Significance	A widely discussed and criticised decision illustrating the sometimes harsh operation of the statutory scheme under Section 15, and highlighting continuing calls for legislative reform of the succession rules relating to a Hindu female's property.

Illustration

A childless Hindu woman, who received a small parcel of land from her father during her lifetime, dies intestate; if she is survived by her husband (or his relations) as well as her own parents, the property she inherited from her father would, under Section 15(2)(a), revert to the heirs of her father rather than pass to her husband's family, since it is property "inherited from her father" and

she died without children. However, as *Omprakash v Radhacharan* illustrates, property that does not fall within this special source-based exception (such as her own self-acquired property or terminal benefits) would devolve according to the general order in Section 15(1), which places the husband's heirs ahead of the woman's own parents, whatever the equities of the situation may be.

Q5. Explain the effect of the 2005 Amendment on partition suits pending at the time of its commencement, with reference to *Ganduri Koteswaramma v Chakiri Yanadi*. Illustrate.

Principle: Because the Hindu Succession (Amendment) Act, 2005 conferred coparcenary rights on daughters with effect from its commencement, an important practical question arose regarding suits for partition of joint family property that were already pending, in various stages, when the amendment came into force. In particular, where a preliminary decree for partition (which merely declares the shares of the parties) had been passed but a final decree (which actually divides the property by metes and bounds) had not yet been passed, courts had to determine whether the daughter's newly conferred coparcenary rights could still be given effect to.

Ganduri Koteswaramma v Chakiri Yanadi	
Citation	(2011) 9 SCC 788
Facts	In a partition suit, a preliminary decree had already been passed, declaring the shares of the parties according to the law as it stood before the 2005 Amendment, but the final decree dividing the property by metes and bounds had not yet been passed when the Amendment came into force; a daughter sought to enhance her share in light of her newly conferred coparcenary status.
Issue	Where a preliminary decree for partition has been passed, but no final decree has yet been passed, can a daughter still claim the enhanced share available to her as a coparcener under the amended Section 6, or is the matter concluded once and for all by the preliminary decree?
Held	The Supreme Court held that a preliminary decree for partition is merely a declaration of shares, and it is always subject to modification until a final decree is passed; since no final decree effecting an actual division by metes and bounds had been passed in this case, the daughter was entitled to claim the benefit of the amended Section 6 and to have her share correspondingly enhanced before the final decree was drawn up.
Significance	Clarifies that only a registered partition deed or a partition effected by a final decree (not merely a preliminary decree) forecloses a daughter's enhanced coparcenary rights under the 2005 Amendment, a principle later expressly endorsed in <i>Vineeta Sharma v Rakesh Sharma</i> .

Illustration

A partition suit is filed in 2003 among a father, his son and his unmarried daughter, and a preliminary decree declaring the shares (giving the daughter, at that time, only a right to maintenance rather than a full coparcenary share) is passed in 2004. If, by the time the case reaches the stage of a final decree, the Hindu Succession (Amendment) Act, 2005 has already come into force, the daughter, following *Ganduri Koteswaramma v Chakiri Yanadi*, can still claim her

enhanced coparcenary share equal to that of the son, and the court will amend or redraw the shares accordingly before passing the final decree, since only an actual, final division of the property (or a registered partition deed) — not a mere preliminary declaration of shares — forecloses the benefit of the amendment.

Part C — 15 Marks Questions

1. Discuss the scheme of intestate succession to the property of a Hindu male under the Hindu Succession Act, 1956.

Key points: Section 8 — order of succession: Class I heirs, then Class II, then agnates, then cognates; the Schedule listing Class I and Class II heirs; simultaneous succession and equal division among Class I heirs; rule of preference among entries in Class II; meaning of agnates and cognates (Sections 12 and 13); order of succession among agnates and cognates.

2. Discuss the rules of succession to the property of a Hindu female under Sections 15 and 16 of the Hindu Succession Act, 1956.

Key points: General order under Section 15(1) — sons and daughters (including children of a predeceased child) and husband first, then heirs of the husband, then mother and father, then heirs of the father, then heirs of the mother; special source-based rule under Section 15(2) for property inherited from parents or from husband/father-in-law, which reverts to the source in the absence of the female's own children; *Omprakash v Radhacharan* illustrating the operation and criticism of this scheme; Section 16 rules of distribution.

3. Discuss Section 14 of the Hindu Succession Act, 1956 — the enlargement of a Hindu woman's limited estate into full ownership, with reference to decided cases.

Key points: Position of a Hindu woman's limited estate before 1956; Section 14(1) converting any property possessed by a female Hindu, whether acquired before or after the Act, into her absolute property; the proviso/Section 14(2) exception for property acquired under a gift, will or instrument, decree, order or award that prescribes a restricted estate; *V. Tulasamma v V. Sesha Reddi* laying down the test that Section 14(1) applies where the woman had a pre-existing right (such as a right to maintenance) even if the instrument in fact prescribes a limited estate.

4. Discuss the changes brought about by the Hindu Succession (Amendment) Act, 2005 in respect of daughters' coparcenary rights, and trace the judicial evolution of the law up to *Vineeta Sharma v Rakesh Sharma*.

Key points: Section 6 as substituted in 2005 — daughter to become a coparcener by birth in the same manner as a son; background of the Hindu Succession (Andhra Pradesh Amendment) Act, 1986 and similar State amendments that preceded the Central amendment; *Prakash v Phulavati* (Supreme Court requiring that the father-coparcener be alive on 9 September 2005 for the daughter to claim coparcenary rights); *Danamma @ Suman Surpur v Amar* (a divergent view); *Vineeta Sharma v Rakesh Sharma* (three-judge Bench settling that the daughter's right is by birth and does not depend on the father being alive on the date of the amendment, so long as no registered partition had already taken effect); *Ganduri Koteswaramma v Chakiri Yanadi* on application of the amendment to pending partition suits.

5. Explain notional partition and the right of residence in a dwelling house under the Hindu Succession Act, and discuss the historical significance of the Hindu Succession (Andhra Pradesh Amendment) Act, 1986.

Key points: *Notional partition under the proviso to the (unamended) Section 6 — a deemed partition immediately before death to ascertain the share of a deceased coparcener for devolution by succession; Gurupad Khandappa Magdum v Hirabai Khandappa Magdum on giving full effect to the fiction of notional partition; the (now omitted) Section 23 restricting a daughter's right to claim partition of a dwelling house so long as male heirs choose to live in it, and its removal by the 2005 Amendment; the pioneering step taken by the Andhra Pradesh, Tamil Nadu, Karnataka and Maharashtra amendments (1986-94) in making daughters coparceners even before the 2005 Central Amendment.*